

YOUR POLICY NUMBER: C6TGXTW6
EFFECTIVE FROM 2025-10-01 TO 2026-10-01

ASLAM, UMAR FAROOQ
15248132 CANADA INC
200 BURNHAMTHORPE RD E UNIT 1004
MISSISSAUGA ON L5A 4L4
CANADA

WELCOME TO DESJARDINS INSURANCE



Thank you for trusting us for your auto insurance.

We are pleased to enclose your auto insurance policy documents. Please take a few minutes to review them to make sure the information is accurate. At Desjardins, we provide coverage that meets your needs, while offering exceptional service, both online and over the phone each and every time.

If you have questions about your coverage, please do not hesitate to contact us.

Welcome aboard!

The Desjardins Insurance Team

SERVING YOU IS A PLEASURE!

**Thanks to Online Services,
also available in our mobile
app, you can:**

- ▶ View or modify your insurance file
- ▶ Add a driver or vehicle
- ▶ Store a vehicle or change your storage dates
- ▶ File a claim and more!

 OVER THE PHONE	 ANYTIME	 ANYWHERE
1-800-794-0008 CLAIMS 24/7 INSURANCE AND BILLING Monday to Friday from 8 a.m. to 8 p.m. Saturday from 8 a.m. to 4 p.m.	desjardins.com/insurance	Download the Desjardins Insurance Home-Auto app 

P.O. Box 7065, Station A, Mississauga ON L5A 4K7

DESJARDINS INSURANCE OFFERS 24/7 CLAIMS SERVICE – WE TAKE CARE OF EVERYTHING FOR YOU



We know how stressful an accident or a loss can be. That's why you can count on us to act fast. We'll put your mind at ease and support you every step of the way until your claim is settled.

Damage to your vehicle?

You can now file your **auto insurance claim online!**

Visit our website to learn more about the steps involved in filing a claim for:

- Auto glass breakage.
- Accident with collision.
- Accident involving injuries.
- Fire, theft or vandalism.
- Natural disaster (e.g., windstorm, hail).
- Incident involving your liability.
- Other incident resulting in damage to your vehicle (e.g., a tree falls on your vehicle).



desjardins.com/insurance-claims

ONLINE OR OVER THE PHONE: WHEN TO CONTACT US



Keeping your policy up-to-date is the best way to make sure you always have the right coverage for your changing needs. Remember to report any vehicle-related changes. Some examples:

- You change jobs and are driving your vehicle to work or you're retired and no longer drive to work.
- There's a new driver in your household.
- You modify your vehicle to improve performance.
- You change your address.

Are you eligible for exclusive group insurance rates?

Visit thepersonal.com to learn more.

TOWING AND REPAIRS



WHERE SHOULD YOU GET YOUR CAR TOWED?

In the event of an accident, we will have your vehicle towed to the nearest garage of your choice or one recommended by us. Towing expenses will be reimbursed provided your claim is covered.

4 GOOD REASONS TO CHOOSE ONE OF OUR CERTIFIED REPAIR SHOPS

You have the option of choosing your own repair shop. However, we can also recommend a number of certified quality repair shops where you can expect:

1. Quality service that meets our standards.
2. A full guarantee on parts and labour for as long as you own your vehicle.
3. Your vehicle will be returned to you much faster because our customers receive priority treatment.
4. Reduced repair costs, which helps to keep our claims costs and premiums down.

TAKE CARE OF YOUR WINDSHIELD

A chip-free windshield helps keep you safe on the road.

Chipped windshield? Take care of it!

If you have glass breakage coverage, you won't pay for glass repairs. It's quick, easy and will help keep your windshield in good condition. You don't even need to call us! Just go to your nearest UniglassPlus, CARSTAR, Speedy Glass, Apple Auto Glass or one of our other certified shops and show them your insurance card (pink slip). They will take care of the rest.



To find a recommended provider, body shop or auto glass facility, use the search tool on our website.

YOUR RIGHTS REGARDING YOUR PERSONAL INFORMATION

Respecting your privacy is our priority. For more information on our practices, go to desjardins.com/ca/privacy. You can access your file, make any changes or corrections or, if you have a complaint, write to our Client Complaint Management Centre, Desjardins Insurance, P.O. Box 7065, Station A, Mississauga, ON L5A 4K7.

If you are not satisfied with the response received, please write to the Chief Privacy Officer at: 100, rue des Commandeurs, LEV-100-6e, Lévis (Québec) G6V 7N5 or by email: cpo@desjardins.com.

Notice date: 2025-09-30 13:05

ASLAM, UMAR FAROOQ
15248132 CANADA INC
200 BURNHAMTHORPE RD E UNIT 1004
MISSISSAUGA ON L5A 4L4
CANADA

Billing Account Number: 6475942

Method of payment: In full upon receipt of Invoice

Amount due on 2025-11-01: \$8,410.00

For Policy Number: C6TGXTW6

Please detach and return this portion with your payment (instructions on the back). - Thank you
Keep this portion for your files.

Organization number: SIPC-21682



Transactions	Effective Date	Amount	Tax	Total
New Auto Policy C6TGXTW6	2025-10-01	\$8,410.00		\$8,410.00

Billing Account Details following the above Transactions

Policy Number	Description *	Policy effective from **	Amount ***	Due Date
Renewal(s)				
C6TGXTW6	2026 MERCEDES-BENZ GLC43	2025-10-01 to 2026-10-01	\$8,410.00	2025-11-01

* For complete details, refer to your insurance documents.
** Effective as of 12:01 am local time at the postal address stated herein.
*** The amount(s) are for information only, including taxes (if applicable).

Important Messages

Reminder: This invoice is payable in full on the date indicated.

HOW TO PAY YOUR BILL

1 By an electronic payment system through any participating financial institution

Register **Certas Direct Insurance Company** as a payee at your financial institution's website. Use your **POLICY OR BILLING ACCOUNT NUMBER** as your account/reference number.

2 By mail

Please make your cheque payable to Certas Direct Insurance Company and indicate your policy number on the front. **Do not send cash.** Enclose your cheque and this detachable portion in the envelope provided.

Address: **Certas Direct Insurance Company**
Billing Services
P.O. Box 7065
Mississauga ON L5A 4K7

3 No worries, no fuss Opt for payment by preauthorized debit

Preauthorized debits are a fast and efficient way to make your insurance payments. No more cheques to write, no more stamps to buy and you don't have to go out of your way to make your payments. It's all done automatically through the financial institution of your choice.

You can modify your payment method anywhere and anytime with our online services at **desjardins.com/insurance**

Unpaid amounts

If a payment cannot be made due to insufficient funds, fees will be added to the unpaid amount. As legislated, we reserve the right to cancel your policy if the payment agreement is not respected.

Cancellation

As indicated in your insurance contract, if you choose to cancel it before the end of the term, we will calculate the premium owed using the short-term rate.

Questions?

Contact our Billing Services from Monday to Friday from 8 a.m. to 8 p.m. ET and on Saturday from 8 a.m. to 4 p.m. ET at **1-800-794-0008**.

Certain terms and conditions apply to each method of payment.

IMPORTANT NOTICE

ONTARIO OPTIONAL ACCIDENT BENEFITS

You may be interested in purchasing increased limits to standard coverages for you, your spouse, dependant or driver on your policy. Please take the time to review this information to better understand the coverage you have and whether or not you need to increase your limits. If you already have or will be purchasing private health or disability insurance, the coverages on your automobile policy are considered secondary to those. **Please contact us if you wish to purchase optional coverage.**

Coverage	Standard Coverage	Optional Coverage
Medical, Rehabilitation and Attendant Care (non-minor / non-catastrophic injuries)	Up to \$65,000 for medical, rehabilitation and attendant care benefits, including assessment costs, for a maximum duration of 5 years	If you do not have access to any or sufficient private health insurance or otherwise feel the standard coverage is not enough coverage for you, you may want to consider increasing your maximum limit to \$130,000 , for a maximum duration of 5 years.
Medical, Rehabilitation and Attendant Care (catastrophic injuries)	Up to \$1,000,000 for medical, rehabilitation and attendant care benefits, including assessment costs, for a lifetime duration	If you do not have access to any or sufficient private health insurance or otherwise feel this is not enough coverage for you, you may want to consider an additional \$1,000,000 for catastrophic injuries. If purchased, your total coverage for catastrophic injuries is \$2,000,000 or if purchased in addition to the optional coverage listed below, your total coverage for catastrophic injuries is \$3,000,000 .
Medical, Rehabilitation and Attendant Care (all non-minor injuries)	\$65,000 as above and \$1,000,000 as above	If you would like to increase the benefit limits for all non-minor injuries, you have access to an optional benefit which will allow an increase as follows: <u>Non-minor / non-catastrophic</u> : \$1,000,000 , for a lifetime duration; <u>Catastrophic</u> : \$2,000,000 , for a lifetime duration.
Income Replacement	70% of gross income up to \$400 per week if you are unable to work due to an automobile accident	If you do not have access to any or sufficient private disability insurance or if the standard coverage is otherwise not enough coverage for you, you may want to consider increasing your maximum weekly limit to \$600, \$800 or \$1,000 per week .
Caregiver	Available only if you sustain catastrophic injuries. Up to \$250 per week for the first dependant plus \$50 for each additional dependant	If you are currently providing primary care to dependants, you may want to consider purchasing optional coverage, as a result of which you may be eligible for these benefits for <u>all</u> injuries.
Housekeeping and Home Maintenance	Available only if you sustain catastrophic injuries. Up to \$100 per week	If you are currently responsible for housekeeping and home maintenance tasks, you may want to consider purchasing optional coverage, as a result of which you may be eligible for these benefits for <u>all</u> injuries.
Death and Funeral Benefits	This benefits pays a lump sum of \$25,000 to your eligible spouse, a lump sum of \$10,000 for each dependant and a maximum of \$6,000 for funeral expenses should you die as result of an automobile accident	If this is not enough coverage for you, you can increase your limits to \$50,000 (spouse), \$20,000 (each dependant) and \$8,000 (funeral expenses).
Dependant Care Benefit	Not provided	If you were employed at the time of the accident and you are not eligible for a caregiver benefit and have to pay childcare expenses, you may want to consider purchasing optional coverage to be eligible for up to \$75 per week for the first dependant and \$25 per week for each additional dependant up to a maximum of \$150 per week .
Indexation Benefit	Not provided	If you purchase this optional coverage, many of the benefits will be adjusted annually for inflation in accordance with the Consumer Price Index for Canada.

Important notice(s)

Your policy number: C6TGXTW6

See below for important notice(s) regarding the coverages of your automobile insurance policy.

APPLICABLE TO THE POLICY

Declined Optional Coverage(s)

You have declined the following optional coverage(s):

- One or more Optional Increased Accident Benefits

Please refer to the Insurance Coverages section of the enclosed Certificate of Automobile Insurance for further information.

Please access your account online, or contact us, if you wish to review your decision.

Please do not hesitate to contact us for more information.

This is your Certificate of Automobile Insurance. Contact your Broker/Agent with any questions or if you require clarification regarding your coverage choices.

Policy Number: C6TGXTW6

Your New Policy
Name and Address of Insured

Umar Farooq Aslam
 15248132 Canada Inc
 200 Burnhamthorpe Rd E UNIT 1004
 Mississauga ON L5A 4L4

Policy Period

Policy effective from 2025-10-01* to 2026-10-01*

Year Month Day Year Month Day

* 12:01 a.m. all times are local times at the Named Insured's primary address shown on this Certificate.

Described Automobile(s)
Registered Owner
Year
Make and Model
Serial No. / V.I.N.
Date / Condition Purchased
Lessor (if applicable)
Lienholders (if applicable)

(to whom loss may be jointly payable)

Vehicle 1

Umar Farooq Aslam
 15248132 Canada Inc

2026

MERCEDES-BENZ GLC43 4D AWD

W1NKM8HB1TF465706

2025-09 / New

Mercedes-Benz Financial Services, 500-2680 Matheson
 Boulevard East, Mississauga ON L4W 0A5

Insurance Coverages
Liability

Bodily Injury
 Property Damage
 (5% of Bodily Injury premium)

Accident Benefits (Standard Benefits)
Vehicle 1

Limit \$	Premium \$	Premium for Occasional Driver \$
2,000,000	850 Included	
As stated in Section 4 of Policy	1,098	

Policy Number: C6TGXTW6

Your New Policy
Insurance Coverages (cont'd)

Vehicle 1			
	Limit \$	Premium \$	Premium for Occasional Driver \$
Optional Increased Accident Benefits Income Replacement (\$600/\$800/\$1,000) Medical, Rehabilitation & Attendant Care (\$130,000/\$1,000,000) Optional Catastrophic Impairment (additional \$1,000,000 added to Standard Benefit or Optional Medical, Rehabilitation & Attendant Care Benefit) Caregiver, Housekeeping & Home Maintenance Death & Funeral Dependant Care Indexation Benefit (Consumer Price Index)	Up to \$ per week	Not included	
		Not included	
	As stated in Section 4 of Policy	Not included	
		Not included	
		Not included	
		Not included	
Uninsured Automobile (3% of Accident Benefits (Standard Benefits) premium)	As stated in Section 5 of Policy	Included	
	Deductible \$	Premium \$	Premium for Occasional Driver \$
Direct Compensation - Property Damage*	0	3,065	
*This policy contains a partial payment of recovery clause for property damage if a deductible is specified for direct compensation - property damage.			
Loss or Damage**			
**This policy contains a partial payment of loss clause. A deductible applies for each claim except as stated in your policy.			
All Perils	Included	0	
Collision or Upset	1,000	2,161	
Comprehensive (excluding Collision or Upset)	1,000	833	
Specified Perils (excluding Collision or Upset)	Included	0	

NOTICE: "Not included" MEANS THIS COVERAGE IS NOT PROVIDED.

Policy Change Forms

Veh.	End. No	Name	Limit \$	Premium \$
ENDORSEMENTS APPLICABLE TO VEHICLE				
1	New Vehicle	5 Year New Vehicle Protection (calculated from the date of purchase or lease of the automobile, but not ending prior to the expiry date of your insurance policy).		303
1	Trouble-Free	Trouble-Free Option is applicable to this vehicle.		75
1	OPCF 5	Permission to Rent or Lease Automobiles and Extending Coverage to the Specified Lessee(s)		0
1	OPCF 20	Coverage for Transportation Replacement	1,500	Included
1	OPCF 35	Coverage for Emergency Road Service		Included

Policy Number: C6TGXTW6

Your New Policy
Policy Change Forms (cont'd)

Veh.	End. No	Name	Limit \$	Premium \$
ENDORSEMENTS APPLICABLE TO THE POLICY				
OPCF 27		Liability for Damage to Non-Owned Automobile(s) and Providing Other Coverages When Insured Persons Drive, Rent or Lease Other Automobiles		Included
		- Limit for Loss/Damage:	100,000	
		- Deductible amount for each claim: Collision/Upset - \$500, Comprehensive - \$500		
OPCF 44R		Family Protection Coverage	2,000,000	25

Premium Summary
Premium \$

Premium for vehicle 1 8,385
 Premium for endorsements applicable to the policy 25

Total premium for the policy (Tax excluded) 8,410

Due date for payment of insurance premium: According to payment option agreed upon with the insurer

Method of payment: Invoice

Should you wish to cancel your policy at any time during the policy term prior to the expiry date, please be aware that a cancellation fee may apply.

Rating Information
Driver information

Driver Name	Date of Birth	Gender	Marital Status*	Private Passenger Vehicle			Convictions (Past 3 years)		
				Date Licenced	Principal Operator since	DTC**	Minor	Major	Serious
Umar Farooq Aslam	1994-04-13	M	M	2021-12	2022-03	N/A			

*U: Unknown **DTC: Driver Training Certificate

Driver Name	Vehicle Number***
Umar Farooq Aslam	1

P

***P: Principal S: Secondary O: Occasional

Chargeable Claim(s)

Date	Type of Loss
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Vehicle Information

Veh.	Approximate Kms		Driving Record	Rate Group					Vehicle Code
	Annual	Business		TPL	AB	DCPD	COL	CMP/SP	
1	18,000		6	11	35	76	72	64	888600

Territory: 717
 Parking: Underground parking
 Loyalty

Policy Number: C6TGXTW6**Your New Policy****Rating Information (cont'd)****Discount(s)**

Veh.	Discount applied	Description
1	3%	Winter Tires

Remarks

This Certificate is proof of a contract of insurance between the Named Insured and the Insurer, subject in all respects to the Ontario Automobile Policy (OAP 1). In return for the premium charged and the statements contained in the Application, the contract provides the coverage outlined in this Certificate. You only have a particular coverage for a specific automobile if this Certificate shows a premium for it, or shows the coverage is provided at no cost. All other terms of the Policy remain the same unless stated otherwise in this Certificate. Your Insurer will provide you with a copy of the Policy if you request it. This Certificate is only valid if it is signed by an authorized representative of the Insurer. This Certificate contains important information about your automobile insurance.



Valérie Lavoie
Chief Executive Officer

For purposes of the Insurance Companies Act (Canada), this document was issued in the course of the Insurer's insurance business in Canada.

Policy Number: C6TGXTW6**Your New Policy****This is a brief explanation of the insurance outlined in this Certificate.****Liability**

Provides coverage for you or other insured persons if someone else is killed or injured or their property is damaged in an automobile incident. It will pay for legitimate claims against you or other insured persons up to the limit of your coverage, and the cost of settling claims.

Accident Benefits

Your insurance company is obligated to explain details of Accident Benefits coverage to you. Provides benefits that you and other insured persons are entitled to receive if injured or killed in an automobile accident. These benefits may include: income replacement for persons who have lost income; payments to non-earners who suffer complete inability to carry on a normal life; payment of medical, rehabilitation and attendant care expenses; payment of certain other expenses; payment of funeral expenses and payments to survivors of a person who is killed. You may also purchase optional benefits to increase the standard level of benefits provided in the policy. The optional benefits your insurance company must offer are: income replacement; medical, rehabilitation and attendant care; optional catastrophic impairment; caregiver, housekeeping and home maintenance; death and funeral; dependant care; and an indexation benefit.

Uninsured Automobile

Provides coverage if you or other insured persons are injured or killed by an uninsured motorist or by a hit-and-run driver. It covers damage to your automobile and its contents caused by an identified uninsured motorist.

Direct Compensation - Property Damage

Provides coverage in Ontario, under certain conditions, for damage to your automobile and to property it is carrying, when another motorist is responsible. It is called Direct Compensation because you will collect from us, your insurance company, even though you are not at fault for the accident. There may be a deductible amount, and this amount is either paid by you toward the cost of repairs or is deducted from the loss settlement. Higher deductibles may reduce your premium.

Loss or Damage

Provides a selection of optional coverages for your own automobile. Payments cover direct and accidental loss of, or damage to, a Described Automobile and its equipment. There is usually a deductible amount indicated for each coverage and this amount is either paid by you toward the cost of repairs or is deducted from the loss settlement. Higher deductibles may reduce your premium.

There are four types of coverages:

Specified Perils:

Covers the Described Automobile against loss or damage caused by certain specific perils. They are: fire; theft or attempted theft; lightning; windstorm; hail or rising water; earthquake; explosion; riot or civil disturbance; falling or forced landing of aircraft or parts of aircraft; or the stranding, sinking, burning, derailment or collision of any kind of transport in or upon which the Described Automobile is being transported.

Comprehensive:

Covers a Described Automobile against loss or damage other than those covered by Collision or Upset, including perils listed under Specified Perils, falling or flying objects, missiles and vandalism.

Collision or Upset:

Covers damage when a Described Automobile is involved in a collision with another object or tips over.

All Perils:

Combines the Collision or Upset and Comprehensive coverages.

Warning: The Insurance Act provides that where (a) an Applicant for a contract, (i) gives false particulars of the Described Automobile to be insured to the prejudice of the Insurer, or (ii) knowingly misrepresents or fails to disclose in the application any fact required to be stated therein; or (b) the Insured contravenes a term of the contract or commits a fraud; or (c) the Insured wilfully makes a false statement in respect of a claim under the contract, a claim by the Insured, for other than such statutory accident benefits as are set out in the Statutory Accident Benefits Schedule, is invalid and the right of the Insured to recover indemnity is forfeited.

Warning – Offences: It is an offence under the **Insurance Act** to knowingly make a false or misleading statement or representation to an Insurer in connection with the person's entitlement to a benefit under a contract of insurance, or to wilfully fail to inform the Insurer of a material change in circumstances within 14 days, in connection with such entitlement. The offence is punishable on conviction by a maximum fine of \$250,000 for the first offence and a maximum fine of \$500,000 for any subsequent conviction.

It is an offence under the federal **Criminal Code** for anyone to knowingly make or use a false document with the intent it be acted on as genuine and the offence is punishable, on conviction, by a maximum of 10 years imprisonment.

It is an offence under the federal **Criminal Code** for anyone, by deceit, falsehood or other dishonest act, to defraud or to attempt to defraud an insurance company. The offence is punishable, on conviction by a maximum of 14 years imprisonment for cases involving an amount over \$5,000 or otherwise a maximum of 2 years imprisonment.

Cancellation Request (Fill out and sign when you cancel your policy)

Policy Number: C6TGXTW6

In return for the unearned portion of the premium, if any, this policy is cancelled. Any interim and renewal certificates are no longer valid.

Effective Date of Cancellation Day Month Year

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Time of Cancellation ☐ am ☐ pm

Signature of Named Insured

Signature of Lienholder / Lessor

This proof of insurance must be printed in colour and without modification. May not be valid in all jurisdictions and may be refused if presented.



Underwritten by Certas Direct Insurance Company

PO Box 7065, Mississauga ON L5A 4K7

POLICY NO. / POLICE N°

C6TGXTW6

INSURED / ASSURÉ(S)

ASLAM, UMAR FAROOQ
15248132 CANADA INC
MERCEDES-BENZ FINANCIAL SERVICES
200 BURNHAMTHORPE RD E UNIT 1004
MISSISSAUGA ON L5A 4L4

EFFECTIVE DATE / ENTRÉE EN VIGUEUR

YR/AN MO DAY/JR
2025-10-01

EXPIRY DATE / EXPIRATION

YR/AN MO DAY/JR
2026-10-01

VEHICLE(S): YEAR, MAKE, MODEL, SERIAL NO. / VÉHICULE(S): ANNÉE, MARQUE, MODÈLE, N° DE SÉRIE

1 2026 MERCEDES-BENZ GLC43 4D AWD W1NKM8HB1TF465706



CANADA INTER PROVINCE MOTOR VEHICLE LIABILITY INSURANCE CARD APPLICABLE WITHIN CANADA AND THE UNITED STATES OF AMERICA

CERTIFICAT D'ASSURANCE-AUTOMOBILE RESPONSABILITÉ EN VIGUEUR AU CANADA ET AUX ÉTATS-UNIS D'AMÉRIQUE.



Underwritten by Certas Direct Insurance Company

PO Box 7065, Mississauga ON L5A 4K7

POLICY NO. / POLICE N°

C6TGXTW6

INSURED / ASSURÉ(S)

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MERCEDES-BENZ FINANCIAL SERVICES
200 BURNHAMTHORPE RD E UNIT 1004
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15248132 CANADA INC
MERCEDES-BENZ FINANCIAL SERVICES
200 BURNHAMTHORPE RD E UNIT 1004
MISSISSAUGA ON L5A 4L4

EFFECTIVE DATE / ENTRÉE EN VIGUEUR

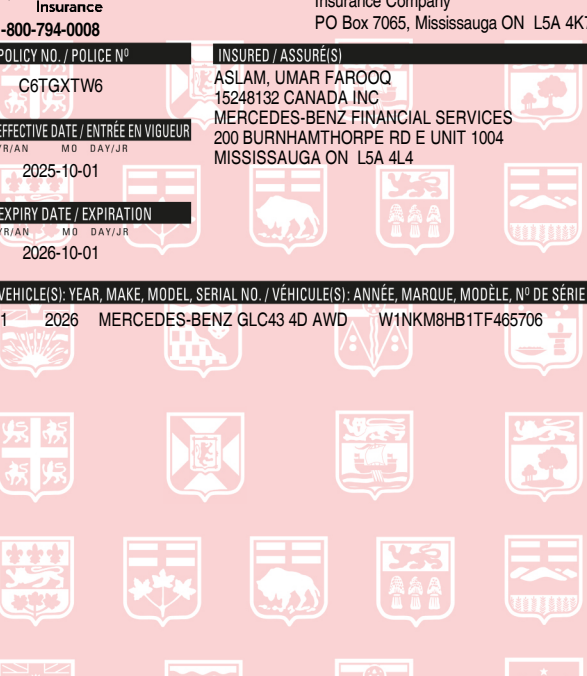
YR/AN MO DAY/JR
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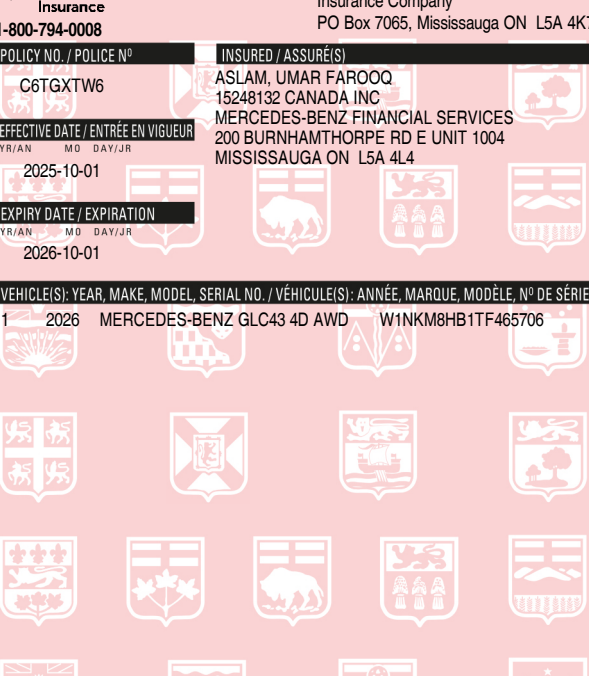
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CANADA INTER PROVINCE MOTOR VEHICLE LIABILITY INSURANCE CARD APPLICABLE WITHIN CANADA AND THE UNITED STATES OF AMERICA

CERTIFICAT D'ASSURANCE-AUTOMOBILE RESPONSABILITÉ EN VIGUEUR AU CANADA ET AUX ÉTATS-UNIS D'AMÉRIQUE.

935 101 (2023-09)

Ce certificat d'assurance auto doit être imprimé en couleur et sans modification. Il pourrait ne pas être valide dans toutes les provinces ou les territoires ou être refusé lorsque présenté.

IN CASE OF AN ACCIDENT

1. Move your car to a safe location and take photos of the damage, if possible.
2. Call 911 if anyone is injured, if your car is not drivable or if public property is damaged.
3. Gather all important information on other drivers and passengers along with their vehicle information, insurance companies, policy numbers and witnesses.
4. File your claim easily online or call us. Our team is available 24/7.

Contact us		desjardins.com/insurance or download our mobile app Desjardins Insurance Home-Auto	
		INSURANCE AND BILLING 1-800-794-0008	24/7 CLAIMS 1-888-785-5502 or claim online

This certificate is subject to the terms and conditions of the insurer's standard automobile policy.

This certifies that the party named herein is insured against liability for bodily injury and property damage by reason of the operation of the motor vehicle described herein, in an amount not less than the statutory minimum requirements in any area of Canada.

WARNING - Any person who issues or produces a card to show that there is in force a policy of insurance as indicated herein that is in fact not in force is liable to a heavy fine and/or imprisonment and his licence may be suspended.

This card should be carried in the insured vehicle for production as a proof of insurance when demanded by police.

Le présent certificat est soumis aux dispositions et conditions de la police d'assurance automobile de l'Assureur.

Ce certificat atteste que la personne susnommée est assurée contre la responsabilité pour blessures et dommages aux biens découlant de l'usage du véhicule décrit dans les présentes, conformément aux limites minimales exigées par les lois d'assurance en vigueur partout au Canada.

AVERTISSEMENT - Quiconque émet ou présente un tel certificat comme preuve d'une police d'assurance responsabilité qui effectivement n'est pas en vigueur, est coupable d'une infraction passible d'une forte amende et/ou d'emprisonnement et suspension de son permis.

Ce certificat doit être laissé dans le véhicule assuré afin d'être présenté comme preuve d'assurance lorsque la police l'exige.

IN CASE OF AN ACCIDENT

1. Move your car to a safe location and take photos of the damage, if possible.
2. Call 911 if anyone is injured, if your car is not drivable or if public property is damaged.
3. Gather all important information on other drivers and passengers along with their vehicle information, insurance companies, policy numbers and witnesses.
4. File your claim easily online or call us. Our team is available 24/7.

Contact us		desjardins.com/insurance or download our mobile app Desjardins Insurance Home-Auto	
		INSURANCE AND BILLING 1-800-794-0008	24/7 CLAIMS 1-888-785-5502 or claim online

This certificate is subject to the terms and conditions of the insurer's standard automobile policy.

This certifies that the party named herein is insured against liability for bodily injury and property damage by reason of the operation of the motor vehicle described herein, in an amount not less than the statutory minimum requirements in any area of Canada.

WARNING - Any person who issues or produces a card to show that there is in force a policy of insurance as indicated herein that is in fact not in force is liable to a heavy fine and/or imprisonment and his licence may be suspended.

This card should be carried in the insured vehicle for production as a proof of insurance when demanded by police.

Le présent certificat est soumis aux dispositions et conditions de la police d'assurance automobile de l'Assureur.

Ce certificat atteste que la personne susnommée est assurée contre la responsabilité pour blessures et dommages aux biens découlant de l'usage du véhicule décrit dans les présentes, conformément aux limites minimales exigées par les lois d'assurance en vigueur partout au Canada.

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2. Call 911 if anyone is injured, if your car is not drivable or if public property is damaged.
3. Gather all important information on other drivers and passengers along with their vehicle information, insurance companies, policy numbers and witnesses.
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2. Call 911 if anyone is injured, if your car is not drivable or if public property is damaged.
3. Gather all important information on other drivers and passengers along with their vehicle information, insurance companies, policy numbers and witnesses.
4. File your claim easily online or call us. Our team is available 24/7.

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AVERTISSEMENT - Quiconque émet ou présente un tel certificat comme preuve d'une police d'assurance responsabilité qui effectivement n'est pas en vigueur, est coupable d'une infraction passible d'une forte amende et/ou d'emprisonnement et suspension de son permis.

Ce certificat doit être laissé dans le véhicule assuré afin d'être présenté comme preuve d'assurance lorsque la police l'exige.

5 Year New Vehicle Protection

See your Certificate of Automobile Insurance for which automobile(s) this change applies to. The additional premium for this change is shown on your Certificate of Automobile Insurance.

1 Purpose of this Change

This change is part of your policy. It removes our right to deduct depreciation from the value of your automobile when settling a claim for loss or damage.

2 What We Will Pay

In return for premium charged, we remove our right under Section 7.7 of your policy, "What we will Pay" and Section 6.2 of your policy, "What we will Cover" to deduct depreciation from the value of your automobile for loss or damage caused by a peril for which you are insured under Section 7, "Loss or Damage Coverages (Optional)" & Section 6, Direct Compensation-Property Damage Coverage. These coverages are subject to the deductible shown on your Certificate of Automobile Insurance.

In the event of a total loss, we will replace the described automobile with another new automobile, current year, with the same specifications and equipment. If the replacement automobile is not available, we will replace the described automobile with another of similar like, kind and quality with similar equipment.

If the vehicle is not being replaced, the most we will pay is the **lowest of** the following amounts:

- the actual purchase price of the automobile and its equipment or the value of the automobile and its equipment as stated on the leasing agreement of the lessee;
- the manufacturer's suggested list price of the automobile and its equipment on the original date of purchase or at the original date of the leasing agreement;
- the cost of replacing the automobile with a new automobile of the same make and model, similarly equipped.

These amounts include all applicable taxes.

In the event that we have determined the loss to be a partial loss, new parts will be used.

3 Limitations on Your Coverage

- You must be the original purchaser or lessee of the described automobile and the automobile must be new at the time of delivery.
- The loss or damage must occur within 60 months (5 years) following the delivery date of when the described automobile was delivered to the insured, or before the expiry date of that policy term.
- If the automobile is leased, the O.P.C.F. 5, "Permission to Rent or Lease Automobiles and Extending Coverage to the Specified Lessee(s)", must be included with your policy.

4 What is Not Covered

This change does not apply to:

- tires;
- batteries; or
- betterment of the automobile resulting from repairing or replacing parts for prior unrepaired damage.

Except as otherwise provided in this endorsement, all limits, terms, conditions, provisions, definitions and exclusions of the policy shall have full force and effect.

Trouble-Free Option

In consideration of the premium shown in the Certificate of Automobile Insurance, the following policy change forms apply to your policy.

1 OPCF 20 Coverage for Transportation Replacement

1. Purpose of This Change

This change is part of your policy. It provides coverage for you when you need to pay for other means of transportation because of loss or damage to your automobile caused by a peril for which you are insured. It replaces coverage by Section 7.4.4 of your policy, "Loss of Use Due to Theft".

2. What We Will Pay

- 2.1 In return for the premium charged, we will reimburse you for the reasonable expenses of renting a similar substitute automobile. This includes the reasonable expenses of taxicabs or public transportation.
- 2.2 The most we will pay is the limit per occurrence shown in your Certificate of Automobile Insurance for this policy change form.
- 2.3 If the loss of use is because of theft of your entire automobile, this change replaces Section 7.4.4 of your policy, "Loss of Use Due To Theft". But, we will not pay less than the limits described in that section.

3. Limitations on Your Coverage

- 3.1 We will only pay if the costs for loss or damage to your automobile exceed any applicable deductible amount shown in your Certificate of Automobile Insurance.
- 3.2 We will reimburse you from the time the loss or damage occurs if your automobile cannot be operated under its own power; or 12:01 a.m. of the day following your report to us or the police that your automobile has been stolen.

In all other cases, we will reimburse you from the time your automobile is delivered for repair due to loss or damage.
- 3.3 Your coverage ends on the date that your automobile is repaired or replaced; or we offer you a payment to settle the claim.

2 OPCF 27 Liability for Damage to Non-Owned Automobile(s) and Providing Other Coverages When Insured Persons Drive, Rent or Lease Other Automobiles

1. Purpose of This Change

This change is part of your policy. It extends coverage:

- for loss or damage to a non-owned automobile including its equipment resulting from the care, custody or control of that non-owned automobile by an insured person; and
- when a person listed on the Certificate of Automobile Insurance drives other automobiles or rents or leases other automobiles.

2. Who is Covered

- 2.1 If the Certificate of Automobile Insurance is in the name of an individual or individuals, an **insured person** in this change form means you, your spouse and all drivers listed on the Certificate of Automobile Insurance.
- 2.2 If the Certificate of Automobile Insurance is in the name of a corporation, unincorporated association, partnership, sole proprietorship or other entity, an **insured person** in this change form means the persons listed on the Certificate of Automobile Insurance and their spouses.

3. Liability for Damage to Non-Owned Automobiles

3.1 What We Will Cover

In return for the premium charged, we will provide coverages for the liability imposed by law or assumed by any written agreement for loss or damage to a non-owned automobile including its equipment resulting from the care, custody or control of that non-owned automobile by an insured person. This loss or damage must result from a peril set out in your Certificate of Automobile Insurance for this policy change form and for which you are insured and have paid a premium. These cov-

erages are subject to the deductibles shown on your Certificate of Automobile Insurance for this policy change form, except as stated in your policy.

3.2 Limitations on This Coverage

- 3.2.1 The coverage applies only to an automobile with a Gross Vehicle Weight Rating (GVWR) of 4,500 kilograms or less.
- 3.2.2 We will not cover loss or damage to any automobile which is:
 - owned or licensed in the name of any person insured by this change or by any person living in the same dwelling as these persons; or
 - owned or leased by the employer of these persons.
- 3.2.3 Where applicable, Sections 3.3.1, 3.3.2 and 3.3.3 of your policy will apply to this change.
- 3.2.4 We will not pay more than the amount stated on your Certificate of Automobile Insurance under this change for any one occurrence plus the costs provided for in 3.2.3 above.
- 3.2.5 The automobile must be used with the owner's or lessee's consent.

4. Providing Other Coverages When Insured Persons Drive, Rent or Lease Other Automobiles

4.1 What We Will Cover

In return for the premium charged, we will provide the Liability, Accident Benefits, Uninsured Automobile and Direct Compensation – Property Damage coverages described in your policy when the insured persons drive other automobiles.

However, we will not provide Liability coverage to persons who are excluded drivers under this policy when they drive, in Ontario, an automobile which is rented or leased for a period of less than 30 days. We will also provide Liability coverage to insured persons who rent or lease automobiles for periods of not more than 30 days, but only with respect to the liability of the insured persons for the negligence of drivers of the rented or leased automobiles, and we will not provide this additional Liability coverage if the driver of the rented or leased automobile is an excluded driver under this policy.

4.2 Definition of Other Automobile

For the purposes of Section 3, "Liability Coverage", Section 4, "Accident Benefits Coverage", Section 5, "Uninsured Automobile Coverage", and Section 6, "Direct Compensation – Property Damage", of your policy, **other automobile** also means:

any automobile with a GVWR of 4,500 kilograms or less, other than the Described Automobile while driven by an insured person referred to in 2, when the other automobile:

- is not being driven by an insured person in connection with the business of selling, repairing, maintaining, storing, servicing or parking automobiles;
- is not owned or frequently used by an insured person or anyone living in the same dwelling as the insured person;
- is not owned, hired or leased by an insured person's employer or by an employer of anyone living in the same dwelling as the insured person; and
- is not being used to carry paying passengers or to make commercial deliveries at the time of the loss.

Any automobile with a GVWR of more than 4,500 kilograms, other than the described automobile, while driven by an insured person referred to in 2, when the other automobile is being used for personal purposes and only if it is rented for no more than 7 days.

For Direct Compensation – Property Damage Coverage the other automobile cannot be a Described Automobile in a motor vehicle liability policy.

4.3 Limitations on This Coverage

This coverage does not apply to anyone who owns an insured automobile or leases an automobile covered by OPCF 5, "Permission to Rent or Lease Automobile(s) and Extending Coverage to the Specified Lessee(s)", or a similar policy change form.

3 OPCF 35 Coverage for Emergency Road Service

1. Purpose of This Change

This change is part of your policy. It adds coverage for emergency service expenses because your automobile is disabled.

2. What We Will Pay

In return for the premium charged, we will reimburse you for up to \$50 for each time your automobile is disabled and as a result you require emergency service. You must provide us with acceptable evidence of loss and receipts for any towing and emergency service.

3. What is Not Covered

This change does not apply to cost of parts or supplies, oil, gasoline, batteries or tires.

If more than one automobile is insured under this policy, the coverages described in the Trouble-Free Option shall apply only to the automobile(s) described in the Certificate of Automobile Insurance for these policy change forms.

Except as otherwise provided in each policy change form, all limits, terms, conditions, provisions, definitions and exclusions of the policy shall have full force and effect.

Permission to Rent or Lease Automobiles and Extending Coverage to the Specified Lessee(s)

OPCF 5

See your Certificate of Automobile Insurance for which automobile(s) this change applies to.

1. Purpose of This Change

This change is part of your policy.

Lessor

It permits the lessor to rent or lease automobile(s) to the lessee who has completed the Ontario Application for Automobile Insurance - Owner's Form (OAF 1). For the purposes of s. 267.12 (1) (a) of the Insurance Act (Ontario), the policy shall be deemed to have been issued only to the lessee of the automobile, and not to the lessor.

Lessee

It provides coverage to the lessee as if the lessee were the Named Insured, and to every other person who uses or operates the automobile with the lessee's consent. The coverage will not exceed the limits and amounts shown on the Certificate of Automobile Insurance.

2. Changes to Your Policy

2.1 In the following Sections of your policy, the word "you" will include the lessee:

- Section 1, "Introduction", except in 1.4.3 where "you" means the owner, and in 1.6.2 and 1.6.3 where "you" means the lessee;
- Section 3, "Liability Coverage", except in 3.5.1 where "you" means the lessee;
- Section 6, "Direct Compensation - Property Damage Coverage"; and
- Section 7, "Loss or Damage Coverages (Optional)", except in 7.4.3 and 7.4.4 where "you" means the lessee.

2.2 In the following Sections of your policy, the word "you" means the lessee:

- Section 2, "What Automobiles Are Covered";
- Section 4, "Accident Benefits Coverage"; and
- Section 5, "Uninsured Automobile Coverage".

2.3 In Section 1.8.2 of your policy, "Excluded Drivers and Driving Without Permission", "owner" means the lessee.

2.4 Section 1.8.3 of your policy, "Rented or Leased Auto", is changed to the following:

Except for certain Accident Benefits coverage, there is no coverage under this policy if the automobile is rented or leased to someone other than the lessee named in the policy. However, if an insured person is using the automobile for an employer's business and is paid for using it, we won't consider that renting or leasing.

2.5 Section 1.8.4 of your policy is changed to the following:

- 1.8.4 Garage Workers Not Covered

No person who sells, repairs, maintains, stores, services, or parks automobiles as part of a business, is covered by this policy while involved in conducting that business, unless the person leases from the lessor the automobile involved in an incident or is the employee or partner of the lessee.

2.6 In Section 2.2.1 of your policy, "Newly Acquired Automobiles", the words "that you acquire as owner" will mean leased by the lessee from the lessor.

3. Changes to the Application

Item 11 of the Ontario Application for Automobile Insurance - Owner's Form (OAF 1) is changed to the following:

Where

- (1) the lessee as applicant for a contract
 - (i) gives false particulars of the Described Automobile to be insured to the prejudice of the Insurer; or
 - (ii) knowingly misrepresents or fails to disclose in the application any fact required to be stated therein; or
- (2) the lessee contravenes a term of the contract or commits a fraud; or

(3) the lessee wilfully makes a false statement in respect of a claim under the contract,

a claim by the lessee, for other than such statutory accident benefits as are set out in the Statutory Accident Benefits Schedule, is invalid and the right of the lessee to recover indemnity is forfeited.

Where

- (4) the lessor contravenes a term of the contract or commits a fraud; or
- (5) the lessor wilfully makes a false statement in respect of a claim under the contract, a claim by the lessor is invalid and the right of the lessor to recover indemnity is forfeited.

All other terms and conditions of your policy remain the same.

Family Protection Coverage OPCF 44R

Definitions

1. Subject to Section 2, in this change form:

1.1 Automobile means a vehicle for which motor vehicle liability insurance would be required if it were subject to the law of Ontario.

1.2 Dependent relative means:

- (a) a person who is principally dependent for financial support upon the Named Insured or his or her spouse, and who is
 - (i) under the age of 18 years;
 - (ii) 18 years or over and is mentally or physically incapacitated;
 - (iii) 18 years or over and in full time attendance at a school, college or university;
- (b) a relative of the Named Insured or of his or her spouse, who is principally dependent on the Named Insured or his or her spouse for financial support;
- (c) a relative of the Named Insured or of his or her spouse, who resides in the same dwelling premises as the Named Insured; and
- (d) a relative of the Named Insured or of his or her spouse, while an occupant of the Described Automobile, a newly acquired automobile, or a temporary substitute automobile, as defined in the policy.

But Subsections 1.2(c) and 1.2(d) apply only where the person injured or killed is not an insured person as defined in the Family Protection Coverage of any other policy of insurance or does not own, or lease for more than 30 days, an automobile which is licensed in any jurisdiction of Canada where Family Protection Coverage is available.

1.3 Eligible claimant means:

- (a) the insured person who sustains bodily injury; and
- (b) any other person who, in the jurisdiction in which an accident occurs, is entitled to maintain an action against the inadequately insured motorist for

damages because of bodily injury to or death of an insured person.

1.4 Family Protection Coverage means the insurance provided by this change form and any similar indemnity provided under any other contract of insurance.

1.5 Inadequately insured motorist means:

- (a) the identified owner or identified driver of an automobile for which the total motor vehicle liability insurance or bonds, cash deposits or other financial guarantees as required by law in lieu of insurance, obtained by the owner or driver is less than the limit of Family Protection Coverage; or
- (b) the driver or owner of an uninsured automobile or unidentified automobile as defined in Section 5, "Uninsured Automobile Coverage" of the policy.

Provided that:

- (A) where an eligible claimant is entitled to recover damages from an inadequately insured motorist and the owner or operator of any other automobile, for the purpose of
 - (i) (a) above; and
 - (ii) determining the Insurer's limit of liability under Section 4 of this change form;

the limit of motor vehicle liability insurance shall be deemed to be the aggregate of all limits of motor vehicle liability insurance and all bonds, cash deposits or other financial guarantees as required by law in lieu of such insurance, for all of the automobiles;

- (B) where an eligible claimant is entitled to recover damages from the identified owner or identified driver of an uninsured automobile as defined in Section 5 of the policy, for the purpose of

- (i) (a) and (b) above; and
- (ii) determining the limit of coverage under Section 4 of this change form;

other uninsured automobile coverage available to the eligible claimant shall be taken into account as if it were

motor vehicle liability insurance with the same limits as the uninsured automobile coverage;

- (C) where an eligible claimant alleges that both the owner and driver of an automobile referred to in clause 1.5(b) cannot be determined, the eligible claimant's own evidence of the involvement of such automobile must be corroborated by other material evidence; and

- (D) **other material evidence** for the purposes of this section means:

- (i) independent witness evidence, other than evidence of a spouse as defined in Section 1.11 and Section 1.10 of this change form or a dependent relative as defined in Section 1.2 of this change form; or
- (ii) physical evidence indicating the involvement of an unidentified automobile.

1.6 Insured person means:

- (a) the Named Insured and his or her spouse and any dependent relative of the Named Insured and his or her spouse, while
 - (i) an occupant of the Described Automobile, a newly acquired automobile or a temporary substitute automobile as defined in the policy;
 - (ii) an occupant of any other automobile except where the person leases the other automobile for a period in excess of 30 days or owns the other automobile, unless Family Protection Coverage is in force in respect of the other automobile; or
 - (iii) not an occupant of an automobile who is struck by an automobile; and
- (b) if the Named Insured is a corporation, an unincorporated association, partnership, sole proprietorship or other entity, any officer, employee or partner of the Named Insured for whose regular use the Described Automobile is provided and his or her spouse and any dependent relative of the Named Insured and his or her spouse, while

- (i) an occupant of the Described Automobile, a newly acquired automobile or a temporary substitute automobile as defined in the policy;
- (ii) an occupant of an automobile other than
 - (a) the automobile referred to in (i) above;
 - (b) an automobile leased by the Named Insured for a period in excess of 30 days; or
 - (c) an automobile owned by the Named Insured;

provided Family Protection Coverage is in force in respect of the other automobile; or
- (iii) not an occupant of an automobile, who is struck by an automobile;

except that

where the policy has been changed to grant permission to rent or lease the Described Automobile for a period in excess of 30 days, any reference to the Named Insured shall be construed as a reference to the lessee specified in that change form.

1.7 Limit of Family Protection Coverage means the amount set out in the Certificate of Automobile Insurance with respect to this change form, but if no amount is set out in the Certificate, the limit for liability coverage set out in the Certificate with respect to the automobile to which this change form applies is the limit of Family Protection Coverage.

1.8 Limit of motor vehicle liability insurance means the amount stated in the Certificate of Automobile Insurance as the limit of liability of the Insurer with respect to liability claims, regardless of whether the limit is reduced by the payment of claims or otherwise;

provided that in the event that an Insurer's liability under a policy is reduced by operation of law to the statutory minimum limits in a jurisdiction because of a breach of the policy, the statutory minimum limits are the limits of motor vehicle liability insurance in the policy.

1.9 Policy means the policy to which this change form applies.

1.10 Spouse means either of a man or woman who

- (a) are married to each other;
- (b) have together entered into a marriage that is voidable or void, in good faith on the part of the person making a claim under this change form; or
- (c) have lived together in a conjugal relationship outside marriage,
 - (i) continuously for a period of not less than three years, or
 - (ii) in a relationship of some permanence, if they are the natural or adoptive parents of a child.

1.11 Uninsured automobile means an automobile with respect to which neither the owner nor driver thereof has applicable and collectible bodily injury liability and property damage liability insurance for its ownership, use or operation, but does not include an automobile owned by or registered in the name of the Insured or his or her spouse.

2. The definitions in Section 1 apply as of the time of the happening of an accident for which indemnity is provided under this change form.

Insuring Agreement

3. In consideration of the premium shown in the Certificate of Automobile Insurance to which this change form applies, the Insurer shall indemnify an eligible claimant for the amount that he or she is legally entitled to recover from an inadequately insured motorist as compensatory damages in respect of bodily injury to or death of an insured person arising directly or indirectly from the use or operation of an automobile.

Limit of Coverage Under This Change Form

4. The Insurer's maximum liability under this change form, regardless of the number of eligible claimants or insured persons injured or killed or the number of automobiles insured under the policy, is the amount by which the limit of Family Protection Coverage exceeds the total of all limits of motor vehicle liability insurance, or bonds, or cash deposits, or other financial guarantees as required by law in lieu of such insurance, of the inadequately insured motorist and of any person jointly liable with that motorist.

5. Where this change form applies as excess, the Insurer's maximum liability under this change form is the amount calculated under Section 4 of this change form, less the amounts available to eligible claimants under any first loss

insurance referred to in Section 18 of this change form.

Amount Payable per Eligible Claimant

6. The amount payable to an eligible claimant under this change form shall be calculated by determining the amount of damages the eligible claimant is legally entitled to recover from the inadequately insured motorist, and deducting from that amount the aggregate of the amounts referred to in Section 7 of this change form, but in no event shall the Insurer be obliged to pay an amount in excess of the limit of coverage as determined under Sections 4 and 5 of this change form.

7. The amount payable under this change form to an eligible claimant is excess to an amount received by the eligible claimant from any source, other than money payable on death under a policy of insurance, and is excess to amounts that were available to the eligible claimant from

- (a) the insurers of the inadequately insured motorist, and from bonds, cash deposits or other financial guarantees given on behalf of the inadequately insured motorist;
- (b) the insurers of a person jointly liable with the inadequately insured motorist for the damages sustained by an insured person;
- (c) the Société de l'assurance automobile du Québec;
- (d) an unsatisfied judgment fund or similar plan in a jurisdiction other than Ontario, or which would have been payable by such fund or plan had this change form not been in effect;
- (e) the uninsured automobile coverage of a motor vehicle liability policy;
- (f) an automobile accident benefits plan applicable in the jurisdiction in which the accident occurred;
- (g) a law or policy of insurance providing disability benefits or loss of income benefits or medical expense or rehabilitation benefits;
- (h) any applicable Workers' Compensation Act or similar law of the jurisdiction in which the accident occurred;
- (i) The Family Protection Coverage of another motor vehicle liability policy.

8. If the Insurer is presented with claims by more than one eligible claimant and the total amount payable to the eligible claimants exceeds the limit of the Insurer's liability under Sections 4 and 5 of this change form, the Insurer shall pay to each eligible claimant a pro rata portion of the amount otherwise payable to each eligible claimant; and if payments are made to eligible

claimants prior to the receipt of actual notice of any additional claim, the limits in Sections 4 and 5 shall be the amount calculated under those sections less the amounts paid to the prior eligible claimants.

Determination of the Amount Recoverable

9. The amount that an eligible claimant is entitled to recover shall be determined in accordance with the procedures set forth for determination of the issues of quantum and liability under Section 5 of the policy "Uninsured Automobile Coverage".
10. In determining the amount that an eligible claimant is entitled to recover from the inadequately insured motorist, issues of quantum shall be decided in accordance with the law of Ontario, and issues of liability shall be decided in accordance with the law of the place where the accident occurred.
11. In determining any amounts that an eligible claimant is entitled to recover, no amount shall be included with respect to prejudgment interest which accumulated prior to notice as required by Section 15 of this change form.
12. In determining any amount that an eligible claimant is entitled to recover, no amount shall be included with respect to punitive, exemplary, aggravated or other damages awarded in whole or in part because of the conduct of the inadequately insured motorist or the person jointly liable with him or her, unless these damages are for the purpose of compensating the eligible claimant for losses actually incurred.
13. In determining any amounts an eligible claimant is entitled to recover from an inadequately insured motorist, no amount shall be included with respect to costs.
14. For the purposes of this change form the findings of a court with respect to issues of quantum or liability are not binding on the Insurer unless the Insurer was provided with a reasonable opportunity to participate in those proceedings as a party.

Procedures

15. The following requirements are conditions precedent to the liability of the Insurer to an eligible claimant under this change form:
 - (a) the eligible claimant shall promptly give written notice, with all available particulars, of any accident involving injury to or death of an insured person and of any claim made on account of the accident;
 - (b) the eligible claimant shall, upon request, provide details of any policies of insur-

ance other than life insurance to which the eligible claimant may have recourse;

- (c) the eligible claimant and the insured person shall submit to examination under oath, and shall produce for examination at such reasonable place and time as is designated by the Insurer or its representative, all relevant documents in their possession or control, and shall permit extracts and copies of them to be made.
16. Where an eligible claimant commences a legal action for damages for bodily injury or death against any other person owning or operating an automobile involved in the accident, a copy of the initiating process shall be delivered or sent by registered mail immediately to the chief agent of head office of the Insurer in Ontario together with particulars of the insurance and loss.
17. Every action or proceeding against the Insurer for recovery under this change form shall be commenced within 12 months of the date that the eligible claimant or his or her representative knew or ought to have known that the quantum of claims with respect to an insured person exceeded the minimum limits for motor vehicle liability insurance in the jurisdiction in which the accident occurred, but this requirement is not a bar to an action which is commenced within 2 years of the date of the accident.

Multiple Coverages

18. The following rules apply where an eligible claimant is entitled to payment under Family Protection Coverage under more than one policy:
 - (a) (i) if he or she is an occupant of an automobile, such insurance on the automobile in which the eligible claimant is an occupant is first loss insurance and any other such insurance is excess;
 - (ii) if he or she is not an occupant of an automobile, such insurance in any policy in the name of the eligible claimant is first loss insurance and any other such insurance is excess;
 - (b) all applicable first loss Family Protection Coverage shall be apportioned on a pro rata basis, but in no event shall the aggregate payment under all such insurances exceed the highest limit of coverage provided by any one of such first loss insurances;
 - (c) the applicable first loss insurance shall be

exhausted before recourse is made to excess insurances;

- (d) all applicable excess Family Protection Coverage shall be similarly apportioned on a pro rata basis, but in no event shall the aggregate payment under all such insurances exceed the highest limit of coverage as defined in Section 5 of this change form, which is provided by any one of such excess insurances.

Accidents in the Province of Quebec

19. This change form does not apply to an accident occurring in the Province of Quebec for which compensation is payable under the "Automobile Insurance Act (Quebec)" or under an agreement referred to in that Act.

Subrogation

20. Where a claim is made under this change form, the Insurer is subrogated to the rights of the eligible claimant by whom a claim is made, and may maintain an action in the name of that person against the inadequately insured motorist and the persons referred to in Section 7 of this change form.

Assignment of Rights of Action

21. Where a payment is made under this change form, the Insurer is entitled to receive from the eligible claimant an assignment of all rights of action, whether judgment is obtained or not, and the eligible claimant undertakes to cooperate with the Insurer, except in a pecuniary way, in the pursuit of any subrogated action or any right of action so assigned.

Miscellaneous

22. If more than one automobile is insured under this policy, this change form shall apply only to the automobile(s) described in the schedule of automobiles which is enclosed and forms part of this policy, or as shown in the Certificate of Automobile Insurance.

If this change form is designated with respect to more than one automobile, coverages shall be construed as if provided by separate policies of insurance with respect to each automobile to which this change form applies, subject to the provisions of Section 18 of this change form.

Except as otherwise provided in this policy change form, all limits, terms, conditions, provisions, definitions and exclusions of the policy shall have full force and effect.

